

Vinay Kumar Jain v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 19 October 2022 · Writ-C No. 29929 of 2022 · Writ-C No. 29929 of 2022 · **Writ disposed; petitioner relegated to clause 6.5 objection before Executive Engineer.**

HEADNOTE

A Division Bench of the Allahabad High Court disposed of a writ raising a factual electricity dispute by holding that the petitioner's remedy is to file an objection before the Executive Engineer under paragraph 6.5 of the Electricity Supply Code, 2005. The petitioner was given two weeks to file, and the Engineer was directed to decide all points of objection expeditiously, preferably within four weeks of receipt.

FACTUAL SUMMARY

Vinay Kumar Jain invoked the writ jurisdiction of the Allahabad High Court against the State of Uttar Pradesh and five others, including the Electricity Department (respondent no. 4). The petition raised a factual dispute. Counsel for the petitioner, the Standing Counsel for the State respondents, and counsel for the Electricity Department were heard. The Court did not try those facts and treated the grievance as one for the statutory objection route before the Executive Engineer.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

clause 6.5 objection as alternate remedy to writ

HOLDING

Where a writ petition raises a factual electricity dispute, the petitioner's remedy is to approach the Executive Engineer by filing an objection under paragraph 6.5 of the Electricity Supply Code, 2005; the writ is disposed of with a direction to file that objection within two weeks and for the Executive Engineer to decide it, dealing with all points of objection, preferably within four weeks of receipt. ¶ 1

PRINCIPLE TAGS

clause-6.5-alternate-remedy-to-writ The Court refused to decide the factual electricity dispute on the writ and relegated the petitioner to a paragraph 6.5 objection before the Executive Engineer. ¶ 1

clause-6.5-representation-executive-engineer The petitioner was directed to file an appropriate objection before the concerned Executive Engineer within two weeks; if so filed, the Engineer must decide all points of objection expeditiously, preferably within four weeks. ¶ 1

6.5-representation-as-appropriate-remedy Paragraph 6.5 of the Electricity Supply Code, 2005 was treated as the appropriate remedy for the factual dispute raised in the writ. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE PETITIONER'S FACTUAL ELECTRICITY DISPUTE

The Court did not examine the underlying facts or grant or refuse any billing or supply relief; it only pointed the petitioner to clause 6.5. ¶ 1